

FEDERAL MARITIME COMMISSION

USL AUTO EXPORTING INC.,

COMPLAINANT,

v.

Docket No. 23-13

EASY SHIPPING CORPORATION

RESPONDENT.

COMPLAINANT'S
MOTION FOR LEAVE TO AMEND MOTION FOR SUMMARY JUDGMENT

Complainant USL Auto Exporting, Inc. (USL Auto), through its undersigned manager, respectfully requests leave from the Federal Maritime Commission to amend its Motion for Summary Judgment filed on January 5, 2024. This request is made to address and correct deficiencies identified in the denial of the motion by the Judge.

DATED: March 19, 2024,

Respectfully submitted,

1. Introduction

Complainant USL Auto Exporting, Inc. (USL Auto), hereby submits this motion for leave to amend its Motion for Summary Judgment, initially filed on January 5, 2024. This motion seeks to address and rectify the deficiencies cited in the Order Denying Complainant's Motion for Summary Judgment, issued by Honorable Judge Alex M. Chintella.

2. Legal Basis for Default Judgment

The U.S. Supreme Court in *Foman v. Davis*, 371 U.S. 178 (1962), affirmed that leave to amend should be freely given to foster justice. Similarly, *Zenith Radio Corp. v. Hazeltine Research, Inc.*, 401 U.S. 321 (1971), reinforces the principle of liberal amendment except in cases of undue delay, bad faith, or dilatory motive.

3. Reason for Amendment

USL Auto acknowledges the Commission's concerns regarding insufficient evidence and lack of specific citations in its original summary judgment. It seeks to amend the motion to include comprehensive citations and evidence.

4. Proposed Amendments

USL Auto intends to revise its Motion for Summary Judgment to correct citation errors, provide additional evidence supporting its claims, and ensure the motion complies with procedural and evidentiary standards.

5. Conclusion

In the interest of justice and thorough judicial review, USL Auto respectfully requests the Commission grant this motion for leave to amend the Motion for Summary Judgment.

Respectfully submitted,

DATED: March 19, 2024,

USL AUTO EXPORTING INC.

By: s/ANIS HOUSSEIN

ANIS HOUSSEIN

Vice President for COMPLAINANT

Address: 84 Kensington Dr.,

PISCATAWAY, New Jersey 08854

Telephone: (862) 338-0889

Email: general.manager@uslautoexporting.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on the 19th day of March 2024, a true and correct copy of the foregoing MOTION FOR LEAVE TO AMEND MOTION FOR SUMMARY JUDGMENT was served via electronic mail on:

EASY SHIPPING CORPORATION (fracati@rafatilegal.com)

By: s/ANIS HOUSSEIN
ANIS HOUSSEIN